



GRETCHEN WHITMER
GOVERNOR

STATE OF MICHIGAN
DEPARTMENT OF
ENVIRONMENT, GREAT LAKES, AND ENERGY
AIR QUALITY DIVISION



PHILLIP D. ROOS
DIRECTOR

September 16, 2026

VIA EMAIL

James Ahern
Ahern Contracting, Inc.
67501 Brian Drive
Ray Township, Michigan 48096

SRN: P1288, Macomb County

Dear James Ahern:

VIOLATION NOTICE

On August 6, 2026, the Department of Environment, Great Lakes, and Energy (EGLE), Air Quality Division (AQD) conducted an inspection of Ahern Contracting, Inc. (Company) located at 67501 Brian Drive, Ray Township, Michigan. The purpose of this inspection was to determine the Company's compliance with the requirements of the federal Clean Air Act; Part 55, Air Pollution Control, of the Natural Resources and Environmental Protection Act, 1994 PA 451, as amended, MCL 324.5501 *et seq*; the Air Pollution Control Rules, Mich Admin Code, R 336.1101 *et seq*; and the conditions of Permit to Install (PTI) No. 78-22 v1.0.

Violations:

During the inspection the following violation was observed:

Process Description	Permit/Rule Violated	Comments
FGCRUSHING	R336.2001 (Rule 2001); PTI, Special Condition (SC) 1.8	Testing/Sampling - The facility did not submit to the AQD the results of the 40 CFR Part 60 Subpart OOO visible emissions test on the portable crusher.

PTI, SC 1.8 requires verification of visible emission rates from all NSPS subject crushers, screens, all transfer points on conveyors, and all other miscellaneous equipment associated with FGCRUSHING, by testing at owner's expense and submittal of a complete report of opacity observations to the AQD within 30 days following the last date of the test. Rule 2001 requires results of performance tests be submitted to the

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department in the format prescribed by the applicable reference test method within 60 days after the last date of the test.

In an email dated June 24, 2024, James Ahern stated the testing required in SC 1.8 was conducted. During this inspection, it was noted that the Company had not submitted the results of the required 40 CFR Subpart OOO visible emissions test to the AQD. The Company was advised during this inspection that this is a violation of Rule 2001.

Next Steps:

A written response should be submitted through [MiEnviro Portal](#) by **October 7, 2026**, and include all of the following:

- the dates the violation occurred;
- an explanation of the causes and duration of the violation;
- whether the violation is ongoing;
- a summary of the actions that have been taken and are proposed to be taken to correct the violation and
- the dates by which these actions will take place; and what steps are being taken to prevent a reoccurrence.

If the Company believes the above observations or statements are inaccurate or do not constitute violations of the applicable legal requirements cited, provide appropriate information to explain your position in your response to this letter.

Thank you for your attention to resolving the violation cited above and for the cooperation that was extended to me during my inspection. If you have any questions regarding the violation or the actions necessary to bring this facility into compliance, please contact me at the number listed below.

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Sincerely,

A handwritten signature in black ink, appearing to read 'M. Dziadosz', written in a cursive style.

Mark Dziadosz

Senior Environmental Quality Analyst

Air Quality Division

586-854-1611

cc: Annette Switzer, EGLE

Christopher Ethridge, EGLE

Brad Myott, EGLE

Jenine Camilleri, EGLE

Kerry Kelly, EGLE